



SPONSOR: Rep. Michael Smith & Sen. Poore  
Reps. Hensley, Hilovsky, Shupe, K. Williams; Sens.  
Hansen, Lawson, Mantzavinos, Pettyjohn, Richardson,  
Sokola, Sturgeon, Wilson

HOUSE OF REPRESENTATIVES  
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 281

AN ACT TO AMEND TITLE 11 OF THE DELAWARE CODE RELATING TO CHILD ABUSE BY A PERSON IN A POSITION OF TRUST, AUTHORITY, OR SUPERVISION.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend § 1103, Title 11 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 1103F. Child abuse by a person in a position of trust, authority, or supervision in the first degree; penalties.

A person is guilty of child abuse by a person in a position of trust, authority or supervision in the first degree when the person:

(a) intentionally or recklessly causes serious physical injury to a child and that injury causes permanent disfigurement, permanent impairment of health, or permanent loss or impairment of a bodily organ;

(b) intentionally or recklessly causes serious physical injury to a child;

(c) intentionally or recklessly causes physical injury to a child and any 1 of the following applies:

(1) the child is less than 6 years of age;

(2) the child has an intellectual development, or physical disability

(3) the injury as caused by means of a deadly weapon or dangerous instrument.

(4) It is not a defense that the person did not know the child's age or that the person reasonably believed the child to be 6 years or older.

(5) It is not a defense that the person did not know the child has an intellectual, developmental, or physical disability or that the person reasonably believed the child did not have an intellectual, developmental, or physical disability.

(d) intentionally or recklessly causes physical injury to a child;

(e) intentionally, knowingly, or recklessly acts in a manner likely to be injurious to the physical, mental or moral welfare of a child.

(f) a. Child abuse by a person in a position of trust, authority or supervision in the first degree as set forth in paragraph (a) of this section is a class A felony.

23                    b. Child abuse by a person in a position of trust, authority or supervision in the first degree as set forth in  
24 paragraph (b) of this section is a class B felony.

25                    c. Child abuse by a person in a position of trust, authority or supervision in the first degree as set forth in  
26 paragraph (c) of this section is a class C felony.

27                    d. Child abuse by a person in a position of trust, authority or supervision in the first degree as set forth in  
28 paragraph (d) of this section is a class E felony.

29                    e. Child abuse by a person in a position of trust, authority or supervision in the first degree as set forth in  
30 paragraph (e) of this section is a class F felony.

31                    (g) Nothing contained in this section shall preclude a separate charge, conviction and sentence for any other crime  
32 set forth in this title, or in the Delaware Code.

#### SYNOPSIS

This bill creates the crime of child abuse by a person in a position of trust, authority, or supervision.

This crime may be a class A, B, C, E, or F felony depending on the degree of injury to the victim and whether the defendant acted intentionally, recklessly, or knowingly.